

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

101 CMR 412.00: RATES FOR FAMILY TRANSITIONAL SUPPORT SERVICES

Section

412.01: General Provisions

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412.01: General Provisions

(1) Scope. 101 CMR 412.00 governs the payment rates for family transitional support (FTS) services purchased by a governmental unit.

(2) Applicable Dates of Service. Rates contained in 101 CMR 412.00 apply for dates of service provided on or after July 1, 2024.

(3) Disclaimer of Authorization of Services. 101 CMR 412.00 is neither authorization for nor approval of the services for which rates are determined pursuant to 101 CMR 412.00. Governmental units that purchase the services described in 101 CMR 412.00 are responsible for the definition, authorization, and approval of services extended to clients.

(4) Administrative Bulletins. EOHHS may issue administrative bulletins to clarify its policy on substantive provisions of 101 CMR 412.00.

(5) Services and Rates Covered by Other Regulations. Payment rates for the services listed in 101 CMR 412.01(5) are not included within the scope of 101 CMR 412.00 and are governed by other regulations promulgated by EOHHS as follows.

EXPLANATORY STATEMENT

Select Legislative Instrument No. 259, 2013

~~Issued by Authority of the Parliamentary Secretary to the Minister
for Agriculture~~

~~Fisheries Levy Act 1984~~

~~Fisheries Levy (Torres Strait Prawn Fishery) Amendment
Regulation 2013 (No. 1)~~

~~The Fisheries Levy (Torres Strait Prawn Fishery) Amendment
Regulation 2013 (No. 1) (the Regulations) is a legislative
instrument for the purposes of the Legislative Instruments Act
2003.~~

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~~Section 8 of the Fisheries Levy Act 1984 (Levy Act) provides that the Governor-General may make regulations for the purposes of sections 5 and 6 of the Levy Act. Section 5 of the Levy Act imposes a levy on, amongst other things, the grant or renewal of a licence and the allocation and renewal of units of fishing capacity issued under the Torres Strait Fisheries Act 1984. Section 6 of the Levy Act provides that the amount of levy imposed on the grant or renewal of a licence or on the allocation or renewal of units of fishing capacity is specified in the Fisheries Levy (Torres Strait Prawn Fishery) Regulations 1998 (the Principal Regulations). Section 7 of the Levy Act provides that the levy is payable at the time of the grant, renewal or variation of the licence, and at the time of the allocation or renewal of units of fishing capacity.~~

~~The attributable costs of managing the Torres Strait Prawn Fishery (the Fishery) are recovered from industry pursuant to a decision of the Protected Zone Joint Authority (PZJA). The PZJA agreed to split the costs to be recovered on the basis of fixed (per licence) and variable (per day – now per unit) components to provide an equitable division of expenses depending on operators' investment in the Fishery. The Fishery is the only Torres Strait fishery currently subject to cost recovery arrangements.~~

~~The Torres Strait Prawn Fishery Management Plan 2008 (the Plan) was determined on 6 February 2009. The Plan provides for the allocation of 'units of fishing capacity' to the Fishery licence holders. The units of fishing capacity are then converted annually into a number of fishing days (annual use entitlement) depending on the total allowable effort for the fishery in a given season.~~

~~The levy costs for the Fishery are attributable to services provided by the Australian Fisheries Management Authority (AFMA) and Queensland Department of Agriculture, Fisheries and Forestry (QDAFF). QDAFF is responsible for administering the licensing and compliance component in management of the Fishery and distributing the annual levy invoices. AFMA is responsible for general management and consultation in relation to the Fishery.~~

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~~The Regulation increases the levy for licences granted or renewed in the Fishery from \$3,359.52 to \$3766.54 per licence (a \$407.02 increase per licence) and increases the levy for each individual allocated fishing unit from \$23.75 to \$25.63 per unit (a \$1.88 increase per unit). The increase is a result of a reduced carry forward surplus compared to past years (\$11,969 in 2013/14 compared to \$53,008 in 2012/13). Collection of the increased levy will commence in December 2013.~~

~~For more detailed information on the basis of the 2013-14 financial year levy and comparisons to the 2012-13 levy see Attachment A.~~

~~The levies are issued on an annual basis and recover the costs of managing the Fishery. Licences cannot be issued for the 2014 fishing season until levies have been paid. The small increase in the levies for the 2014 season is not expected to significantly affect licence holders.~~

Consultation

~~The budgets on which the rates for the levy are based were prepared in consultation with the Torres Strait Prawn Management Advisory Committee (TSPMAC). The TSPMAC, made up of representatives from industry and government, noted the draft 2013-14 budget at an out of session meeting in April 2013. The final budget and levy regulations will be provided to the TSPMAC and the PZJA for noting following their determination. AFMA consulted with the Department of Agriculture as well as QDAFF about the Regulations and associated explanatory documents.~~

~~The Office of Best Practice Regulation was consulted in the preparation of the Regulation (ID: 14421).~~

~~The Regulation is compatible with the human rights and freedoms recognised or declared under section 3 of the *Human Rights (Parliamentary Secretary) Act 2011*. A full statement of compatibility is set out in Attachment B.~~

~~**Details of the Fisheries Levy (Torres Strait Prawn Fishery) Amendment Regulation 2013 (No. 1)**~~

Section 1 – Name of Regulation

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~~This section provides for the instrument to be cited as the *Fisheries Levy (Torres Strait Prawn Fishery) Amendment Regulation 2013 (No 1)*.~~

~~Section 2 – Commencement~~

~~This section provides that the instrument commences on the day after it is registered.~~

~~Section 3 – Authority~~

~~This section provides that the authority for making the regulation is the *Fisheries Levy Act 1984*.~~

~~Section 4 – Schedules~~

~~This section provides that Schedule 1 amends the *Fisheries Levy (Torres Strait Prawn Fishery) Regulations 1998*.~~

~~Schedule 1 – Amendments~~

~~**Item 1** amends subregulation 4(1) and subregulation 4(2) to provide for the 2014 fee for the granting of a licence, by omitting the figure \$3359.52 and inserting the figure \$3766.54 and for the fee payable on the grant of a license for each unit of capacity allocated to the person by omitting the figure \$23.75 and inserting the figure \$25.63.~~

~~**Item 2** amends subregulation 4(3), subregulation 4(4) and subregulation 4(5) to provide the fee payable for each unit of fishing capacity by omitting the figure \$23.75 and inserting the figure \$25.63.~~

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ATTACHMENT A

~~**Basis of the levy**~~

~~Table 1. Levy Calculation. This describes the basis for the 2014 levy based on the 2013-14 financial year budget. Levy costs associated with different budget items (A, B and C below) are~~

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~~divided between the licences and units. These splits are agreed to by the Torres Strait Protected Zone Joint Authority.~~

<u>Service</u>		<u>Regulation</u> <u>Cost</u> <u>recovered</u> <u>budget</u> <u>2012-</u> <u>13</u>	<u>Cost</u> <u>recovered</u> <u>budget</u> <u>2013-</u> <u>14</u>	<u>Licences</u>	<u>Unit</u>	
			<u>component</u> <u>2014</u> <u>levy</u>	<u>% of</u> <u>total</u>	<u>component</u> <u>2014</u> <u>levy</u>	<u>% of</u> <u>total</u>
AF MA to go on k ma na ge me nt (A)	3,974	14,428	0	0	14,428	100
Qu ee ns la nd Bo at in g an d Fi sh er ie	57,594	62,301	31,151	50	31,151	50

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TO						
TA						
E						
=						
(A	368,	405,748	229,759		175,989	
+B	925					
+C						
)-						
D						

412.02: Definitions

As used in 101 CMR 412.00, unless the context requires otherwise, terms have the meanings in 101 CMR 412.02.

Client. A family that receives family transitional support services purchased by a governmental unit.

Client Financial Assistance/Flexible Funding. A method whereby, subject to availability, a purchasing governmental unit may provide individual resource allocations to both families of children and adults across the state. Flexible funding may be provided through a number of means, including: a stipend issued directly to the family; reimbursement to the family for specific expenses and support services; or funds directed by the family to a qualified provider for specific services.

Client Financial Assistance/Flexible Funding Administration. A service in which the provider performs the function necessary to successfully administer flexible funding expenditures to families for permissible support services, services, or goods.

Cost Report. The document used to report costs and other financial and statistical data. The Uniform Financial Statements and Independent Auditor's Report (UFR) is used when required.

Domestic Violence, Substance Misuse, and Trauma (DVSMT) Services. Residential programs that help individuals who need to leave an unsafe situation due to domestic and/or sexual violence, and who need longer-term recovery support to address substance misuse and/or trauma. In addition to housing, DVSMT programs provide a range of activities and services designed to support the individual, familial, and social needs of survivors of domestic violence and their children and/or dependents. Service locations must be designed and furnished to offer families a welcoming and child-friendly environment, in addition to being physically accessible, safe, and secure. Providers who can shelter individuals and families in their own community are preferred.

Emergency Shelter. A program that provides individuals and families who need to leave an unsafe situation with timely and easy access to shelter within their own communities to help them achieve immediate safety while retaining access to school, work, and other supportive connections. The program must

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- (a) allow adults and children to remain connected to informal support from family, friends, counselors, pastors, and others they depend upon in the community; and
- (b) demonstrate the capacity to shelter and serve children as well as adults, and be able to accommodate families requiring assistance with visitation and/or reunification.

EOHHS. The Executive Office of Health and Human Services established under M.G.L. c. 6A.

Family Transitional Support (FTS) Services. A service class of programs that provide families with temporary housing in a specialized congregate or individual setting, to enable stabilization and transition to a safe, permanent, and self-sufficient home environment.

Governmental Unit. The Commonwealth, any board, commission, department, division, or agency of the Commonwealth and any political subdivision of the Commonwealth.

Housing Stabilization Advocacy and Supportive Services. A type of residential housing stabilization program that is either located in donated space or receives additional funding to cover facility costs from another funding source. This program provides supportive services to help survivors of domestic violence locate and maintain employment and/or complete their education, parent their children and establish routines with them, make it possible to be involved in a faith community of their choosing, provide opportunities for children and youth to be involved in after-school activities, prepare survivors for economic independence, and ultimately secure more permanent housing.

Individual Consideration (IC). Payment rates for certain services are designated as individual consideration (IC). If IC rates are designated, the purchasing governmental unit determines the appropriate payment as the actual cost of the item or service as evidenced by invoice, published tuition amount, or other price reasonably obtained by a competitive market for the product or service.

Lower Facility Cost Program. A program identified by the purchasing governmental unit as having nominal facility related costs due to either donated space or additional funding that covers the cost of the residence.

Provider. Any individual, group, partnership, trust, corporation, or other legal entity that offers services for purchase by a governmental unit and that meets the conditions of purchase or licensure that have been adopted by a purchasing governmental unit.

Reporting Year. The provider's fiscal year for which costs incurred are reported to the Operational Services Division on the Uniform Financial Statements and Independent Auditor's Report (UFR).

Residential Housing Stabilization. A program that helps victims and their families find stability within their communities, expand their networks of support, and build their capacity to live independently and securely. Support services help program participants access and maintain permanent housing, access employment and/or attend school, parent their children, and generally prepare for economic independence. Housing may be

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- (a) scattered site rental apartments in which families assume the lease once the program has provided the unit;
 (b) condominiums or single-family homes purchased by families through home buying assistance provided by the program; or
 (c) apartments in multiple dwelling buildings.

412.03: Rate Provisions

- (1) Services Included in the Rate. The approved rate includes payment for all care and services that are part of the program of services of an eligible provider, as explicitly set forth by the purchasing governmental unit(s).
- (2) Reimbursement as Full Payment. Each eligible provider must, as a condition of payment by any purchasing governmental unit, accept the approved rate as full payment and discharge of all obligations for the services rendered. Payment by the purchasing governmental unit for services rendered to the client are reduced by the amount of any payment by any other source.
- (3) Payment Limitations. No purchasing governmental unit may pay less than or more than the approved rate.
- (4) Approved Rates. The approved rate is the lower of the provider's charge or amount accepted as payment from another payer or the rate listed in 101 CMR 412.03(4).

<u>Program/Service Type</u>	<u>Rate</u>	<u>Unit</u>
<u>Emergency Shelter: Full program rate</u>	<u>\$257.67</u>	<u>Per room per day</u>
<u>Emergency Shelter: Lower facility cost program</u>	<u>\$240.11</u>	<u>Per room per day</u>
<u>Residential Housing Stabilization: Full program rate</u>	<u>\$131.15</u>	<u>Per room per day</u>
<u>Residential Housing Stabilization: Lower facility cost program</u>	<u>\$109.93</u>	<u>Per room per day</u>
<u>Housing Stabilization Advocacy and Supportive Services</u>	<u>\$73.00</u>	<u>Per room per day</u>
<u>Domestic Violence, Substance Misuse, and Trauma: Full program rate</u>	<u>\$295.25</u>	<u>Per room per day</u>
<u>Client Financial Assistance/Flex Funding</u>	<u>IC</u>	<u>N/A</u>

<u>Add-on Staff</u>		
<u>Title</u>	<u>Unit of Service</u>	<u>.25 FTE</u>
<u>Direct Care Staff</u>	<u>Monthly</u>	<u>\$1,264.87</u>

412.04: Filing and Reporting Requirements

- (1) General Provisions.
- (a) Accurate Data. All reports, schedules, additional information, books, and records that are filed or made available to EOHHS must be certified under pains and penalties of perjury as true, correct, and accurate by the executive director or chief financial officer of the provider.

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- (b) Examination of Records. Each provider must make available to EOHHS or purchasing governmental unit upon request all records relating to its reported costs, including costs of any entity related by common ownership or control.
- (2) Required Reports. Each provider must file
- (a) an annual Uniform Financial Statements and Independent Auditor's Report completed in accordance with the filing requirements of 808 CMR 1.00: *Compliance, Reporting and Auditing for Human and Social Services*;
 - (b) any cost report supplemental schedule as issued by EOHHS; and
 - (c) any additional information requested by EOHHS within 21 days of a written request.
- (3) Penalty for Noncompliance. The purchasing governmental unit may impose a penalty in the amount of up to 15% of its payments to any provider that fails to submit required information. The purchasing governmental unit will notify the provider in advance of its intention to impose a penalty under 101 CMR 412.04(3).

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412.05: Severability

The provisions of 101 CMR 412.00 are severable. If any provision of 101 CMR 412.00 or application of any provision to an applicable individual, entity, or circumstance is held invalid or unconstitutional, that holding will not be construed to affect the validity or constitutionality of any remaining provisions of 101 CMR 412.00 or application of those provisions to applicable individuals, entities, or circumstances.

REGULATORY AUTHORITY

101 CMR 412.00: M.G.L. c. 118E. The entire 2013-14 budget (including government contributions) is \$432,826 compared to \$429,865 for the 2012-13 financial year. This is an increase of \$2,960 or 0.7 per cent.

The portion of the budget cost recovered from industry (\$417,717) has decreased by \$3,316 (0.8 per cent) in the 2013-14 financial year compared to the 2012-13 financial year (\$421,033). When the carry forward surplus from 2012/13 is applied, the recoverable levy is \$405,748 (Table 1). This represents an increase of 10.3 compared to the 2012-13 recovered levy (\$368,025). This increase in the levy amount is a result of the reduced carry forward surplus in 2013/14 (\$11,969) compared to 2012-13 (\$53,008).

The \$405,748 levy amount comprises \$229,759 in licensing costs and \$175,989 in costs for the fishing unit component. The levy cost per licence is calculated by dividing the licence component by the number of licences in the fishery (61), equating to \$3,766.54 per licence for the 2014 season.

The levy cost per unit is calculated by dividing the unit component of the levy by the number of units in the fishery (6,867), equating to \$25.63 per unit.

ATTACHMENT B

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~~**Statement of Compatibility with Human Rights**~~

~~*Prepared in accordance with Part 3 of the Human Rights
 (Parliamentary Scrutiny) Act 2011*~~

~~**Fisheries Levy (Torres Strait Prawn Fishery) Amendment Regulation
 2013 (No. 1)**~~

~~This Legislative Instrument is compatible with the human rights
 and freedoms recognised or declared in the international
 instruments listed in section 3 of the Human Rights
 (Parliamentary Scrutiny) Act 2011.~~

~~**Overview of the Legislative Instrument**~~

~~The instrument amends the Fisheries Levy (Torres Strait Prawn
 Fishery) Regulations 1998 to allow for an increase in the levy
 payable for licences granted or renewed and units of fishing
 capacity in the Torres Strait Prawn Fishery.~~

~~**Human rights implications**~~

~~This Legislative Instrument does not engage any of the
 applicable rights or freedoms.~~

~~**Conclusion**~~

~~This Legislative Instrument is compatible with human rights as
 it does not raise any human rights issues.~~

~~**Senator the Hon. Richard Colbeck
 Parliamentary Secretary to the Minister for Agriculture**~~